

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

COMPLAINANTS' STATUS REPORT

Complainants herein submit this Status Report to make the Commission aware of changes in status regarding the above captioned matter.

As the Commission may recall from the filing of Complainant's Status Report of June 21, 2017, there is currently litigation ongoing in Federal Court regarding the very same automobiles that are at issue herein (to wit: a Mercedes and Porsche), in the U.S. District Court for the District of New Jersey, captioned as *World Express & Connection, Inc. v. Crocus Investments, LLC et al.* U.S.D.C. -- D.N.J. Docket No.: 2:15-cv-08126-KM-MAH.

The Commission may also recall that Complainant's Status Report of June 21, 2017 explained that defendants/third-party plaintiffs in the matter of *World Express, supra*, which are represented by the undersigned, served a Subpoena for a Deposition upon Written Questions upon the ocean liner known as 'Maersk' which transported complainants' automobiles from the United States to Dubai and the direction and request of respondent herein, MARINE TRANSPORT LOGISTICS, INC. ("MTL").

Said Subpoena seeks to ascertain the capacity in which MTL shipped said vehicles to Dubai pursuant to MTL's service contract (to wit: SCV 644011) with Maersk. Upon information and belief, said service contract required that MTL certify to Maersk that it was either acting in the capacity of Beneficial Cargo Owner ("BCO") or as NVOCC with respect to all cargo shipped pursuant to the service contract.

To the extent that Maersk's response to the subpoena reveals that MTL was acting in the capacity of NVOCC with respect to the shipment of the Mercedes and Porsche, that information will likely change the outcome and will be material to the Commission's forthcoming decision on the Exceptions filed by complainants in the instant matter, inasmuch as it may cut against any finding as made by the Presiding Officer (as well as the respondents herein) that MTL had asserted a warehouse lien on said car *prior* to its shipment from the United States to Dubai and that it had allegedly owned the car (by conversion or otherwise) at the time of shipment, and consequently, that it was allegedly not acting as NVOCC and that no jurisdiction exists over complainants' claims herein.

Counsel for the respondents herein, which also represent World Express & Connection, Inc., MTL, Aleksandr Solovyev, and others in that the Federal litigation, have sought an Order from the Magistrate Judge quashing said subpoena to Maersk.

On August 2, 2017, the Court issued an Order stating that oral argument regarding the objections to the third-party subpoena to Maersk shall take place on October 2, 2017, at 12:00 p.m. and that compliance with the subpoena is stayed pending the Court's adjudication of the objections to the subpoena.¹

In the matter of World Express, *supra*, the undersigned's clients have alleged that Solovyev and MTL made fraudulent representations that they were the owners of the subject Mercedes and

¹ The Order is listed as Docket Entry # 55 on the Court's docket in the matter of World Express, *supra*.

Porsche in order to induce the undersigned's clients to accept the subject cars for delivery in Dubai; to perform custom clearance of cars; and to store and repair them. That action is an action for fraud and civil conspiracy against MTL and Solovyev where it is additionally alleged that they created false documents such as invoices and bills of lading in order to perpetuate the fraudulent representation that they owned said cars.

The aforementioned false and fraudulent documents include invoices bearing the letterhead of the auto auction warehouse known as 'Copart' (and which were backdated to the time of the MTL House Bill of Lading pursuant to which the subject cars were shipped). As the Commission is aware, complainants herein maintain that the Porsche and Mercedes were owned by them at the time that the respondents herein confiscated said vehicles - - at no time were said vehicles ever part of Copart's inventory nor were they ever purchased from Copart.

After the undersigned began to suspect that respondents were creating false invoices for use in this and other litigations², a subpoena was issued to Copart who has now confirmed that the two Copart invoices provided by respondents herein to the undersigned's clients in the matter of World Express, supra, are indeed fake and are not part of Copart's business records. A copy of Copart's response to the subpoena is annexed hereto as Appendix "1" and the Commission is respectfully referred to the page with bates number DEF0004. This is being provided to the Commission inasmuch as these documents were used by respondents in support of their assertion that they were owners of the subject cars (in order to induce undersigned's clients in the matter of

² Respondents' litigation misconduct is also the subject of a motion, pursuant to Fed. R. Civ. P. 60 for relief from a Court Order in the matter of MAVL Capital Inc. et al. v. Marine Transport Logistics Inc. et al., U.S.D.C. E.D.N.Y Docket No.: 1:13-cv-07110-SLT-RLM, wherein it is alleged that respondents and their counsel made duplicitous representations before the Court and this Commission regarding the subject Mercedes and Porsche. Specifically, having previously averred that the sum of \$4950.00 which was wire transferred into respondents' bank account was, in part, payment for the subject Mercedes Benz sold pursuant to an alleged maritime lien, said counsel then duplicitously averred that the same sum of \$4950.00 was in actuality, payment for a "boat trailer" sold by respondents to the complainants in the matter of Crocus Investments, LLC and Crocus FZE v. Marine Transport Logistics, INC. and Aleksandr Solovyev a/k/a Royal Finance Group INC., FMC DOCKET NO.: 15-04.

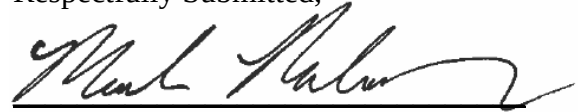
World Express, *supra*, to accept the subject cars for delivery in Dubai; to perform custom clearance of cars; and to store and repair them).³

In closing, there may be information forthcoming which may affect the outcome of the Commission's rulings on Complainants' Exceptions to the Presiding Officer's Initial Decision. Consequently the foregoing, along with the attachments annexed hereto are respectfully submitted as same reflect a dramatic 'change in status' of this case with regard to the parties herein so as to inform the Commission of said change in status as same may reflect upon or be determinative of the pending Exceptions.

As always, complainants thank the Commission for its many continuing courtesies and considerations in this case.

Dated: September 6, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

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³ On this issue, the Commission is respectfully referred to Complainant's Appendix to Petition for Leave to Supplement Exceptions of Complainants to the Initial Decision Issued in this Proceeding, which were filed on March 7, 2017, and which contains a Certification of Alexander Safonov, dated March 7, 2017. The Certification explains that Mr. Safonov received a House Bill of Lading (which is also allegedly fake) from respondents herein, together with the Copart invoices (one of which is annexed thereto).

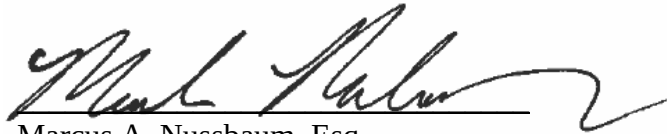
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT and APPENDIX** upon Respondents' Counsel at the following address:

Montgomery McCracken Walker & Rhoads LLP
437 Madison Avenue, 29th Floor
New York, NY 10022
Attn: Eric Chang, Esq.
Attn: Stephen H. Vengrow, Esq.

Law Office of Peter Cipparulo, III, LLC
346 Route 206, Ste. K
Hillsborough, New Jersey 08844

by first class mail, postage prepaid, and by email to: EChang@mmwr.com; svengrow@mmwr.com; and PeterCipparulo@cipplaw.com.

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", with a long horizontal flourish extending to the right.

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Dated: Brooklyn, New York
September 6, 2017